Public Health Association
AUSTRALIA

Committee Secretary
Joint Standing Committee on Electoral Matters
PO Box 6021
Parliament House
Canberra ACT 2600

14 November 2025

RE: Legislative changes made early 2025 concerning electoral finance matters

The Public Health Association of Australia (PHAA) is recognised as the principal non-government organisation for public health in Australia working to promote the health and wellbeing for all. PHAA seeks to drive better health outcomes through increased knowledge, better access and [redacted]ective population-based practice in public health.

[redacted]ide feedback regarding the inquiry for further [redacted]l process and how electoral laws impact our sector. The [redacted]ties Alliance (SCA), and we share the SCA's concerns and recommendations regarding the changes made by the *Electoral Legislation Amendment (Electoral Reform) Act 2025*. Our serious concern is that these laws may constrain us and other charities in the course of our ordinary advocacy activity for our public health policy goals to only use donations that were made to us for the specific purpose of incurring what is defined by the legislation to be "electoral expenditure". This is simply not the way that charities and their members and donors see themselves, and go about our charitable missions. We are also concerned that the application of the definitions of that category of expenditure to us will be difficult to interpret.

Our purpose during election periods is to educate, inform, and advocate for changes to promote public health, strengthen wellbeing, and protect communities and people from a variety of health challenges. The work that PHAA and other charities engages in, such as creating scorecards to enable the voting public to make informed decisions in matters relevant to our core purpose, are standard election advocacy practices which we believe in line with the Commonwealth Charities Act 2013. Our web page for this purpose for 2025 is still online at voteforpublichealth.com. These sorts of activities are carried out by hundreds of charities, are accepted to be normal, and indeed have previously been recognised by the High Court as appropriate and lawful activity for charities.

The 2025 reforms – to commence on 1 July 2026 – might unreasonably burden the use of all the ordinary revenue of charities, including from donations and many other sources, preventing and deterring charities from engaging in advocacy and suppressing our voices during election periods.

The amending law was justified as improving accountability and transparency in the electoral processes, and no doubt it *will* improve matters relating to political parties and other partisan actors, and PHAA's *Unhealthy Political Influence* policy statement supports that outcome. But the

impact of the package on charities is a separate issue to achieving those goals. In fact, to the extent that the impact of the laws inhibits the advocacy of charities relating to future policies of parliaments and governments, it may *reduce* the overall accountability of political actors to the community.

We also note that the Albanese Government has repeatedly promoted that its policy is to protect and advance the right of charities to advocate, yet the 2025 reforms may end up having the opposite effect.

We urge the JSCEM committee to include in its report to Parliament recommendations to remove the constraints on charities inserted by the 2025 Amendment Act, in advance of 1 July 2026. The submission by the Stronger Charities Alliance, which we support, gives you more detailed recommendations.

If you have further questions, please do not hesitate to contact us via [redacted]

Yours Sincerely,

[redacted]

Adj/Prof Terry Slevin
Chief Executive Officer